

JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.38872 of 2020

Iram Shahzadi

V/S

Government of Punjab etc

JUDGMENT

Date of hearing	17.11.2020
Petitioner(s) by	Mr. Muhammad Amir Niaz Bhandara ASC.
Respondent(s) by	Ms. Sadia Malik, Assistant Attorney General M/s Shan Gull, Additional Advocate General, Barrister Umair Khan Niazi, Additional Advocate-General and Barrister Hassan Khalid Ranjha, Assistant Advocate- General with Ghulam Mursaleen, Deputy Director Prosecution, Anti-Corruption Department, Muhammad Ashraf, Deputy Director, Anti-Corruption Department, Sajjad Ahmad Khan, Additional Director General, PLRA and Muhammad Aamir Yaqoob, Deputy Director Legal PLRA. M/s. Mustafa Ramday, Saad Sibghatullah and Zoe Khan, Advocates for the Respondent No.4 . M/s. Ch. Sultan Mahmood and Shamran Mushtaq Chaudhry, Advocates for Respondent No.7

JAWAD HASSAN, J. The Petitioner Iram Shahzadi has filed this petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the “*Constitution*”) for seeking directions against the Respondent No.1/Chief Secretary to implement the order dated 25.08.2020 passed by the Ombudsperson Punjab whereby directions were issued to the Respondent No.2/Director General, Punjab Land Record Authority, Lahore to withdraw suspension order dated 24.08.2020. She has also challenged the legality of order dated

24.08.2020 (the “**Impugned Order**”) passed by the Respondent No.2 whereby she has been suspended under Section 3(i) & (ii) of the Punjab Employees Efficiency, Discipline and Accountability Act, 2006 (the “**PEEDA Act**”). She further prayed for registration of case for harassment at workplace against the Respondents No.2 and 3.

I. PETITIONER’S SUBMISSIONS

2. Learned counsel for the Petitioner submits that the Petitioner was appointed as Assistant Director with the Respondent/PLRA on 21.02.2013 on contract basis under the Contract Policy 2004 and since then she was performing her duties with due diligent but the Respondent No.7, in his entire tenure, due to some personal grudge, not only suspended her thrice without disclosing any reason but also transferred her from one district to another and lastly she was transferred to District Sheikhpura on 13.03.2018. Learned counsel explains that in order to protect her modesty against the retaliation appearing from the conduct of the Respondent No.7, she filed a petition before the Human Rights Cell of the Hon’ble Supreme Court of Pakistan, in consequence thereof, her last transfer order was withdrawn by the authority concerned and she was transferred to Model Town, Lahore vide Notification dated 23.04.2018. She maintains that upon suffering harassment by her male colleagues, she approached various forums in Pakistan for the protection of her fundamental rights and also filed a complaint against the Director Vigilance, PLRA/Respondent No.4 before the Provincial Ombudsperson, Punjab/Respondent No.8 under Section 3 of the Protection against Harassment of Women at the Workplace Act, 2010 (the “**Act**”). He strenuously argued that pursuant to the aforesaid application, the Respondent No.8 vide letter dated 25.08.2020 in unequivocal terms directed the Respondent No.2 to immediately withdraw the Impugned Order but the same has not been withdrawn so far, hence, this petition.

3. It is next contended by Mr. Muhammad Amir Niaz Bhandara ASC, counsel for the Petitioner that instead of withdrawing the Impugned Order, Respondent Department has become more inimical

towards the Petitioner and started involving her in false cases of embezzlement relating to FBR fees, including initiation of inquiries under the Act. He pleads that provisions of Section 6 of the 2006 Act can only be invoked against an employee if, in the opinion of the competent authority, suspension is necessary or expedient but in the case in hand, suspension of the Petitioner is in retaliation of her bringing case against employees of the PLRA before various forums/authorities. Learned counsel goes on to state that the Impugned Order is unconstitutional inasmuch as, it offends the Petitioner's right to life as guaranteed under Article 9 of the Constitution. He adds that the word 'life' in the Constitution has a wide meaning which also covers the right to livelihood. Moreover, under the Constitution, Article 14 provides that the dignity of man and, subject to law, the privacy of home shall be inviolable whereas Article 27 of the Constitution clearly states that no citizen otherwise qualified for appointment in service of Pakistan shall be discriminated against in respect of any such appointment on the ground of race, religion, caste, sex, resident or place of birth. He, while drawing attention of the Court towards the provisions of Articles 34 and 35, asserts that it is the duty of the State to ensure full participation of woman in all spheres of national life and also provide her protection in this regard. He relies on the recent judgment of this Court reported in the case of Asif Saleem versus Chairman Bog University of Lahore and others (PLD 2019 Lahore 407) wherein it has been held that *intention of the legislature for introducing the 2010 Act was to protect all employees from being harassed or exploited during employment which could be at the workplace or any environment as specified in their terms and conditions of the employment.*

II. RESPONDENTS' SUBMISSIONS

(i) Submissions of Law Officers

4. Conversely, Mr. Shan Gull, Additional Advocate General objected to the maintainability of this petition on the ground that Section 10 of the Act provides a remedy of filing a contempt petition before the Respondent No.8/Provincial Ombudsperson, as such, this

writ is premature. He further submits, that the Petitioner has not come to Court with clean hand and filed this Petition without disclosing material facts and multiple inquiries pending against her, which she has not joined so far. Further adds that the petition in hand is bad for misjoinder of actions inasmuch as multifarious prayers having no nexus with each other and the facts alleged. Further averred that the Petitioner is seeking implementation of order dated 25.08.2020 passed by the Ombudsperson Punjab, directing the Respondent No.2 to withdraw suspension order of the Petitioner whereas this Court is not the executing Court of Provincial Ombudsperson. That the Ombudsperson has the power to issue direction and to punish offenders in case of contempt of any orders.

5. Barrister Umair Khan Niazi, Additional Advocate-General submits that the Petitioner has come to this Court with unclean hands because she is trying to stifle and forestall the proceedings pending before the Anti-Corruption Department. He further submits that inquiry against the Petitioner before the Anti-Corruption Department resulted into an investigation because the Petitioner prima-facie was found involved in causing loss to public exchequer. Lastly argues that factual controversy is involved in this case, therefore, this Petition is not maintainable, hence liable to be dismissed.

(ii) Submissions of Counsel for the Respondent No.4.

6. Mr. Mustafa Ramday, Advocate duly assisted by Saad Sibghatullah and Zoe Khan, Advocates for the Respondent No.4 objected qua maintainability of this Petition on the grounds that the Petitioner, being a contractual employee, cannot file the instant constitutional petition, which merits dismissal on this ground alone. Furthermore, the relationship between Petitioner and PLRA is governed by the principle of master and servant and not by any statutory rules. Therefore, she cannot avail the remedy so as to get her grievance redressed, if any, through this constitutional petition. He relied on the judgment cited as “MABASHAR MAJEED Versus PROVINCE OF PUNJAB and 3 others” (2017 P L C (C.S.) 940) wherein it has been held that “*Petitioner employee could not claim*

extension of the contract as a matter of right rather it was prerogative of competent authority either to dispense with services of such employee or continue with the same by extending the contract. Petitioner was a contract employee and was governed by the principle of "master and servant". Petitioner employee did not have any vested right to seek extension of the contract. Constitutional petition in such like cases was not maintainable. No stigma remained on the petitioner employee. Intra court appeal was dismissed in circumstances."

7. Mr. Mustafa Ramday, Advocate further relied on "PAKISTAN INTERNATIONAL AIRLINE CORPORATION Versus TANWEER-UR-REHMAN" (PLD 2010 SC 676) wherein it has held that "*If any adverse action was taken by employer in violation of statutory rules, only then such action should be amenable to constitutional jurisdiction but if such action had no backing of statutory rules then principle of 'Master and Servant' would be applicable and such employees had to seek remedy permissible before the court of competent jurisdiction.*". Further reliance has been placed on "Dr. M. AFZAL BEG Versus UNIVERSITY OF THE PUNJAB and others" (1999 PLC (C.S.) 60) wherein it was observed that "*Petitioner was governed by non-statutory rules and principle of master and servant was attracted in his case. Constitutional jurisdiction of High Court under Article 199 could not be invoked.*". While throwing light on the definition of Harassment under Section 2(h) of the Act he relied on "SHAHINA MASOOD and 9 others Versus Federal Ombudsman Secretariat through Federal Ombudsman and 2 others" (2020 PLC (C.S.) 186).

8. Mr. Mustafa Ramday, Advocate also argued that the Petitioner failed to highlight any irregularity in the process of her inquiry and/or violation of any kind that necessitates judicial intervention, which, in itself, proves the frivolous and vexatious nature of her claim. Therefore, this alone, amounts to a malicious and deliberate misuse and abuse of process of the Court and she filed this Petition on the basis of malafide intention. He further urged that the Petitioner has relied on an illegitimate claim under the garb of harassment against the Respondent No. 4 which is an attempt to not only cause delay to impede the suspension order passed by Respondent No. 2 but to drag,

inter-alia, Respondent No. 4 before this Court, without any nexus whatsoever. Learned counsel stated that *Harassment* has been defined under section 2(h) of the Act, to be an act that is sexual in nature, including but not limited to any unwelcome sexual advances, request for sexual favours or other verbal or written communication or physical conduct of a sexual nature, etc. Complaints before the Ombudsperson relating to acts, conducts or attitude which are not sexual in nature if entertained, should be declared illegal and without jurisdiction. He adds that section 2(h) further explains harassment to constitute causing of interference with work performance or creating an intimidating, hostile or offensive work environment however, this part of the definition cannot be read in isolation and section 2(h) may be read and interpreted as a whole with the nature of the act of harassment, that is sexual. Therefore, unless accompanied by an act of sexual nature/advancement as given by the legislation in section 2(h), any act of inquiring into an employee's suspension, etc. cannot tantamount to harassment. Next contended that this petition is based on false and frivolous grounds because the suspension order terminating services of the Petitioner and the inquiry initiated by the PLRA are as per the processes prescribed under the PEEDA Act therefore, this Petition is liable to be dismissed.

(iii) Submissions of Counsel for the Respondent No.7.

9. Ch. Sultan Mahmood assisted by Shamran Mushtaq Chaudhry, Advocates for Respondent No.7, almost relied on the arguments advanced by learned Law Officers as well as by the learned counsel for the Respondent No.4 and objected qua maintainability of this Petition and stated that if government body is governed by non-statutory rules no jurisdiction of this Court under Article 199 of the Constitution can be invoked. Ch. Sultan Mahmood, Advocate further urged that the Petitioner has come to Court with unclean hands and filed this Petition with *malafide* intention just to tarnish the career of the Respondent No.7 as such the Petition is liable to be dismissed.

10. I have heard the arguments of learned counsels for the parties at great length and perused the record.

III. DETERMINATION BY THE COURT

11. It is not disputed that there is chain of litigation pending between the parties. The Respondents-Department initiated various inquiries, conducted disciplinary proceedings under PEEDA Act and filed complaint before the Anti-Corruption Establishment, whereas the Petitioner moved various harassment petitions against her colleagues, logged FIRs and complaints up to Hon'ble Chief Justice of Pakistan, etc. But the prayer of the Petitioner in this petition is with regard to seeking directions against the Respondent No.1 for implementation of order dated 25.08.2020 passed by the Respondent No.8. The aforesaid order is reproduced hereunder:

"No.WOP/11-227/2019/228
Dated Lahore the 25th of August, 2020
BY REGISTERED POST
CONFIDENTIAL

To

The Director General,
Punjab Land Record Authority,
Lahore.

Subject: **CONTEMPT OF OMBUDSPERSON ORDERS/RETALIATION DURING THE
PENDENCY OF COMPLAINT OF HARASSMENT AT WORKPLACE
TITLED MS. IRUM SHAHZADI VS. COL. SAQIB.**

Whereas the complaint titled Ms. Irum Shahzadi Vs. Col. Saqib is pending in this office for inquiry under the Protection Against Harassment of Women at the Workplace Act, 2012, as adapted with amendments by the Punjab vide Act III of 2013.

The complainant has submitted applications that she would face retaliation from accused Col. Saqib which she has been sent you vide letters No.WOP/11-227/2019/527 dated 22.08.2019 and 20.08.2020 for necessary action so as to ensure that no retaliation is made against her. Complainant now again submitted an application that she has been suspended by you vide order No.PLRA-HR-2020-1652 dated 24.08.2020 despite earlier direction that no retaliation is made against her during the pendency of instant complaint.

*In view of the provisions of the Act, *ibid*, you are required to withdraw PLRA-HR-2020-1652 dated 24.08.2020 w.r.t. suspension of the complainant, immediately, under intimation to this office. It is further advised that no further action be taken against the complainant during the pendency of subject complaint".*

12. From the above, it clearly manifests that the complaint filed by the Petitioner under Section 8 of the Act is pending before the Respondent No.8 and during its pendency, she filed various applications under the impression of retaliation to be caused at the hands of the Respondent No.4. The Respondent No.8 vide letters 22.08.2019 and 20.08.2020 ensured that no retaliation is to be made

against her. The Petitioner on 25.08.2020 submitted contempt of court of Ombudsperson's orders committed by the Respondent No.2 by suspending her. On the said date, the Respondent No.8 passed order dated 25.08.2020 requiring the Respondent No.2 to withdraw her suspension order which is also impugned in this petition.

13. It is noted that the Petitioner preferred a complaint under Section 8 of the Act on 17.08.2019 before the Respondent No.8 wherein show cause notices in terms of Section 8(2) of the Act were issued and the Respondent No.8 informed the Respondents for implementation of orders dated 22.08.2019, 20.08.2020 and 25.08.2020 in terms of Section 8(5) of the Act. From the facts narrated above, it is clear that the proceedings are being conducted by the Respondent No.8 in a complaint pending before it but surprisingly, the Petitioner, instead of pursuing her remedy, has filed this petition for the implementation of the order dated 25.08.2020. The question whether this Court could exercise its powers being executing Court of the Ombudsperson or not. The answer to this question is that such powers have been given to Ombudsperson under Section 10(vi) of the Act which specifically provides procedure to punish any person who commits contempt of the orders passed by the Respondent No.8. The said section is reproduced hereunder:

“10. Powers of the Ombudsperson (vi). The [Ombudsperson] shall have the same powers as the High Court has to punish any person for its contempt”

14. Aforesaid section clearly speaks about the powers of the Ombudsperson for enforcing its orders in case of non-compliance therefore, this Court is not going to exercise powers given to Ombudsperson under Section 10(vi) of the Act. Furthermore, the Petitioner has also challenged her suspension order dated 24.08.2020. Needless to add that the said order was passed by the Respondent No.2 during the restraining orders issued by the Ombudsperson therefore, the Petitioner may agitate withdrawal of suspension order before the Respondent No.8.

15. Basically, the Petitioner is seeking the implementation of order passed by the Respondent No.8 in which she has remedy under Section

10(vi) of the Act. This Court has already discussed in detail the preamble of the Act in “ASIF SALEEM Versus CHAIRMAN BOG University of Lahore etc” (2019 PLD Lahore 407) with the observation that the Act clearly states that it has been made for the protection against harassment of women at the workplace. The Ombudsperson is defined under Section 2(k) of the Act and is appointed under Section 7 of the Act and vests with powers to inquire into the complaint filed under Section 8 of the Act. The Ombudsperson can conduct inquiry into the matter and according to rules made under the Act, he can also investigate the matter and then decide the matter. So far as the implementation of her orders is concerned, the implementation of order is firstly mentioned in Section 8(5) and then under Section 10(vi) which empowers the Ombudsperson to punish any person for non-implementation of her orders. Without touching the merits of the case, the only issue is the implementation of the order of Respondent No.8 which the Respondents are not adhering to. In the order dated 25.08.2020, the Ombudsperson requires the Respondent No.2 to withdraw the suspension order which is not under the jurisdiction of Ombudsperson because order passed under the PEEDA Act has its own mechanism and procedure provided under the Act *ibid*. Article 199 of the Constitution is very clear for seeking writ of mandamus to direct the Respondents to implement the order of the Respondent No.8 which is without any lawful authority because the Respondent No.2 cannot implement the order of the Respondent No.8 from the direction of this Court due to the powers provided under Section 10(vi) of the Act and the writ of mandamus is only maintainable if the Petitioner satisfies that there is no other alternate remedy is provided under the law. The law in this case is the Act and the remedy for the implementation has been provided under Section 10(vi) of the Act which has been availed by the Petitioner twice and the order through which the Petitioner is seeking implementation is the order of suspension of the Petitioner passed under the PEEDA Act.

16. While dealing with the question of maintainability of a petition before this Court in the wake of an alternate efficacious remedy available to a litigant, the Hon’ble Supreme Court of Pakistan in

judgments reported as “INDUS TRADING AND CONTRACTING COMPANY Versus COLLECTOR OF CUSTOMS (Preventive) Karachi and others” (2016 SCMR 842), “DR. SHER AFGAN KHAN NIAZI Versus ALI S. HABIB and others” (2011 SCMR 1813) and “MUHAMMAD ABBASI Versus S.H.O. Bhara Kahu and 7 others” (PLD 2010 SC 969) has held that in the wake of availability of an alternate efficacious remedy, jurisdiction of this Court under Article 199 of the Constitution cannot be invoked.

17. From the above, it can safely be held that this Court is bound to exercise its extra ordinary Constitutional jurisdiction where no other adequate remedy is provided by law but in the present case alternate remedy is available to the Petitioner before the Ombudsperson, therefore, this petition is not maintainable, hence **dismissed**.

(JAWAD HASSAN)
JUDGE

Announced in open Court on the 27th day of November 2020.

APPROVED FOR REPORTING

JUDGE